

division among the beneficiaries will not be invalid, but it must be exercised within a reasonable time (*a*).]

11. **Joint powers.** — Powers given to trustees must be exercised by them jointly, but an act by one trustee, with the sanction and approval of a co-trustee, will be deemed the act of both (*b*).

[12. **Contract for lease by tenant for life carried out.** — Where a power of leasing was given to a legal tenant for life, and after his death to trustees, during the minority of a legal tenant in tail, and the tenant for life entered into a contract to grant a building lease but died before the lease was granted, it was held that the trustees had power to effectuate the contract of the tenant for life by executing a lease (*c*).]

13. **Moral considerations.** — Trustees in the exercise of their powers must act *bonâ fide* and impartially for the benefit of their *cestuis que trust* — i.e. the persons claiming under the settlement, and must not deviate from the terms of the trust from moral considerations, or seek to do what they may think right, if in excess of their trust (*d*).

III. Of the effect of *disclaimer*, *assignment* and *survivorship* of the estate.

First. Of disclaimer.

1. **Effect of disclaimer upon powers.** — If a power be given to several trustees, and one of them *disclaims* [the trust], the power may be exercised by the continuing trustees or trustee (*e*).

In *Hawkins v. Kemp* (*f*), a purchaser at first objected that the accepting trustees could not exercise the power, or not without the appointment of a new trustee in the place of the trustee who had disclaimed, but the point was afterwards

[(*a*) *Per* Jessel, M. R., *Peters v. Lewes, and East Grinstead Railway Company*, 18 Ch. D. 429; but see *S. C.* 16 Ch. D. 703.]

(*b*) *Messeena v. Carr*, 9 L. R. Eq. 260.

[(*c*) *Davis v. Harford*, 22 Ch. D. 128.]

(*d*) *Ellis v. Barker*, 7 L. R. Ch. App. 104.

(*e*) *Jenk. 44*; *Crewe v. Dicken*, 4 Ves. 97; *Earl Granville v. McNeile*, 7 Hare, 166; *White v. M'Dermott*, 7 I. R. C. L. 1.

(*f*) 3 East, 410.